

The Legislature finds and declares that the protecting against corporal punishment, which extends to other citizens in other walks of life, should include children while they are under the control of the public schools. Children of school age are at the most vulnerable and impressionable period of their lives and it is wholly reasonable that the safeguards to the integrity and sanctity of their bodies should be, at this tender age, at least equal to that afforded to other citizens.

Education Code § 49001 sets forth the definition of corporal punishment and identifies two instances that are not considered corporal punishment. It also states that no individual employed by a public school shall inflict corporal punishment on a pupil and that rules, ordinances, bylaws, resolutions, or other acts authorizing corporal punishment are void and unenforceable. (*Clauson, supra*, 221 Cal.App.3d at 1240 f. 8.) The Court found that these statutes were not sufficient to impose a mandatory duty under Government Code § 815.6.

The Court stated:

These statutes are clearly prohibitory in effect, they set forth an express statutory prohibition on certain conduct, with certain enumerated exceptions. Although they may establish important rights and confer significant benefits on members of the public, they do not create any mandatory, affirmative duty on the part of the public schools and school districts to take action or carry out measures to ensure that students are never subjected to corporal punishment by teachers. The statute set forth no guidelines or rules for schools to follow in implementing an affirmative duty to prevent corporal punishment.

(*Id.* at 1240.) “[T]hese provisions are simply declarations or rights, imposing no mandatory duties upon respondents affirmatively to ensure or to guarantee the protection of the particular stated rights to safe schools and privacy. They fail to supply the necessary rules for implementation of the rights they set forth.” (*Id.* at 1241.)

Education Code § 66307 is very similar to Education Code §§ 49000 and 49001. While it prohibits conduct (hazing in any program or activity conducted by any education institution that receives or its students receive state financial assistance), it does not set forth necessary rules for implementation of these rights. Due to this, CSU’s argument has merit, and liability cannot be asserted based on Education Code § 66307 and Government Code § 815.6.

Since Plaintiff has failed to sufficiently allege liability based on Government Code §§ 815.2 and 815.6 or Education Code § 66307, the demurrer is sustained as to the first and second causes of action against CSU with leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVSW2401577	HENDERSON VS HEMET UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES AND FOR PRODUCTION OF DOCUMENTS

Tentative Ruling: Motion granted in part. Granted as to RFP Set Two 1-17. Defendant to serve further verified code compliant responses to all non-privileged documents

within 20 days. Defendant may serve a privilege log to permit evaluation of the claim. Motion is moot as to Form Interrogatories – Employment, Set Two (FROGs) and Requests for Admissions, Set Three (RFAs) in light of Defendant's service of verified supplemental responses on August 31, 2026. Sanctions awarded in the amount of \$2,310.

Plaintiff has filed a motion seeking to compel further responses to Form Interrogatories – Employment, Set Two (FROGs), Requests for Production of Documents, Set Two (RFPs) and Requests for Admissions, Set Three (RFAs). Plaintiff's counsel argues she granted an extension and attempted to meet and confer to resolve the issues, but Defendant failed to provide any substantive supplemental response or produced responsive documents. Plaintiff seeks \$6,360.00 in sanctions.

Defendant opposes arguing that the motion is largely moot as it served substantive verified further responses to RFAs and FROGs on August 31, 2026. Defendant argues Plaintiff does not establish good cause to compel further responses or production to duplicative or equally available document requests. Plaintiff's initial RFPs sought 100 categories of documents, including substantially the same categories as RFPs sets 2 (at issue in this motion) and 3. It argues sanctions are not warranted as it acted with substantial justification in objecting and has substantially complied by serving supplemental responses.

In reply, Plaintiff argues the supplemental responses to FROGs and RFAs remain objection laden and evasive. She argues Defendant has served no further response, and produced no documents at all, in response to the RFPs. Finally, the record supports monetary sanctions.

A party may file a motion compelling further responses to interrogatories, requests for production and requests for admission if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P., §§ 2030.300, 2031.310, 2033.290.)

On the merits, as to FROGs and RFAs, Defendant argues the motion is moot given its service of verified supplemental responses on August 31, 2026. The court is not precluded from granting a motion to compel response filed under Code of Civil Procedure, even if the responding party serves untimely responses after the propounding party has served the motion. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-409.) But, there are procedural requirements which must be met for an order compelling the further responses, including a requirement for good faith meet and confer (Code Civ. Proc., § 2016.040), and a requirement for a separate statement (Cal. Rules of Court, rule 3.1345). Before seeking an order compelling further responses to the belatedly served responses, the Court requires compliance with these procedural requirements. The motion is moot as to these requests.

As to RFPs, at issue are Nos. 1-17. A responding party must choose among a compliance statement, an inability-to-comply representation, or an objection. (C.C.P., § 2031.210(a).) In response to each of the subject requests, Defendant served only boilerplate objections and nothing else. For example, as to each request Defendant

objects to this request on the grounds that it is vague, ambiguous, overbroad, unintelligible, argumentative, irrelevant and not proportional to the needs of the case, calls for expert opinion, calls for legal conclusion, seeks information protected by the attorney-client privilege and/or attorney work-product doctrine, seeks information sought equally available to Plaintiff, seeks information sought is protected from disclosure by Plaintiff's and third party's privacy rights and privileges and that the request is compound. Defendant also asserted Education Code, pt. 27, ch. 6.5 as objections to Nos. 2-7, 14 and 15. Where, as here, every response consists only of objections and omits any compliance statement or inability representation, the responses are structurally incomplete under the statutory scheme.

Defendant does not defend the propriety of the responses, instead it argues Plaintiff has failed to show good cause. The motion to compel further responses "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (C.C.P., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) To establish "good cause," the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (*Glenfed Develop. Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established, the responding party has the burden to justify any objections made to document disclosure. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

Plaintiff has shown good cause for Nos. 1–17, including: The employee handbook (No. 1), which is relevant to the terms, policies, and procedures governing Plaintiff's employment; Complaint, threat, and incident records (Nos. 2–6), which bear directly on the factual context of Plaintiff's conduct and Defendant's explanation for its employment action; Administrator identities, which relate to the decision chain (Nos. 7); Board minutes and documents provided to the Board to support the decision (Nos. 9-13), which go directly to what reasons were presented to the Board and whether Defendant's litigation position matches its contemporaneous internal presentation; Communications with Heritage High School regarding the Subject Student (No. 14), which goes to the basis of her claims; Service-date, probationary-period, and employment-status records (Nos. 15-17), which bear directly on Defendant's asserted basis for release.

Defendant's reliance on delay in propounding Set Two does not defeat good cause. Timeliness in propounding discovery is not an element of the statutory good-cause showing under section 2031.310(b)(1).

Defendant also argues the requests at issue are duplicative of Plaintiff's initial RFPs. However, duplication was not stated as a basis for the objections in the responses actually before the Court. As such, this objection is waived. (*Stadish v. Sup. Ct.* (1999) 71 Cal.App.4th 1130, 1141 [A party whose response fails to set forth a particular ground for objection waives its right to raise that objection later].) Even if duplication were considered on the merits, the evidentiary showing is insufficient. Defendant states the requests seek the "same substantive categories of documents" as RFP one, but does not provide the Court with the initial RFPs, responses or production for the Court to determine whether there is actual overlap.

Defendant also argues the documents are equally available. Even assuming some Board minutes are publicly posted, the inspection-demand statutes do not authorize a

responding party to refuse production of its own records on that ground. The statutory options remain compliance, inability to comply, or objection. (C.C.P., § 2031.210.)

Defendant has otherwise presented no argument to support its blanket assertions of attorney client privilege, or privacy. Without identification of withheld documents, the Court cannot test whether any particular document is privileged. Moreover, Defendant made no showing of a legally protected privacy interest, reasonable expectation of privacy, or serious invasion thereof. The proper remedy is a further response that complies with section 2031.210.

It also failed to justify its assertion of Education Code as to Nos. 2-7, 14 and 15. Education Code section 49076(a) and FERPA's implementing regulation permit disclosure of pupil records under judicial order. Ed. Code § 49076. For requests that plausibly implicate pupil records, the statutes do not prohibit production because they contain an express judicial-order pathway. Defendant's opposition did not brief Education Code or FERPA standards and never explained why a court order, redaction, and confidentiality protections would not satisfy those statutes' purposes. However, the proper remedy is not automatic waiver but a further response that complies with sections 2031.210.

The final issue is sanctions. Monetary sanctions must be imposed against a party who unsuccessfully opposes a motion to compel further responses, unless court finds that the offending party acted with substantial justification. (C.C.P., §§ 2030.300(d), 2031.310(h), 2033.290(d); *Ghanooni v. Super Shuttle* (1992) 20 Cal.App.4th 256, 260.) The agreement to provide further responses "in due time," but waiting until after the motion was filed, does not appear to constitute "substantial justification" as contemplated under the statutes. Moreover, Plaintiff is entirely successful as to the RFPs as the August 4, 2026 responses consisted entirely of objections with no substantive statement of inability to admit or deny, document production, privilege log, or statement of inability to comply. As such, Plaintiff's request for sanctions is appropriate. However, the request for \$6,360.00 (9 hours at \$700/hour plus \$60 filing fee) is high for a single motion. Sanctions are imposed in a reduced amount of \$2,310.